

shall be liable on summary conviction to a fine not exceeding fifty pounds.

(2) The records so furnished to the Minister of Munitions in respect of any particular borehole shall be open to inspection by any person interested in land in the neighbourhood of the borehole.

Interpretation.

5.—(1) For the purposes of this Act the expression “petroleum” means all petroleum and its relative hydrocarbons (except coal and bituminous shales and other stratified deposits from which oil can be extracted by distillation) and natural gas, existing in its natural condition in strata.

(2) His Majesty may by Order in Council transfer to any Government Department or authority all or any of the powers conferred by this Act on the Minister of Munitions, and in such case references in this Act to the Minister of Munitions shall, as respects the powers so transferred, be construed as references to such other Government Department or authority.

Savings.

6.—(1) Nothing in this Act shall prejudice the right of any person who, at the passing of this Act, is using any supply of natural gas for any commercial purpose to continue to use the gas for that purpose.

(2) Nothing in this Act shall be construed as imposing any liability on any person where, in the course of mining or other lawful operations petroleum is set free.

Short title.

7. This Act may be cited as the Petroleum (Production) Act, 1918.

CHAPTER 53.

An Act to amend the Law relating to the Pay and Pensions of the Royal Irish Constabulary and Dublin Metropolitan Police and for other purposes in connection with those Forces. [21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Alteration of rates of pay in certain ranks of the Royal Irish Constabulary and Dublin Metropolitan Police.
45 & 46 Vict. c. 63.
6 & 7 Geo. 5. c. 59.

1.—(1) The pay of county inspectors and district inspectors of the Royal Irish Constabulary shall be according to the rates specified in Part I. of the First Schedule to this Act instead of the respective rates fixed in pursuance of section two of the Constabulary (Ireland) Amendment Act, 1882, or specified in Part I. of the First Schedule to the Constabulary and Police (Ireland) Act, 1916 (in this Act referred to as “the Act of 1916”).

(2) The pay of constables of the Royal Irish Constabulary shall be according to the rates specified in Part II. of the First Schedule to this Act instead of the rates specified in Part II. of the First Schedule to the Act of 1916.

(3) The pay of constables of the Dublin Metropolitan Police shall be according to the rates specified in the Second Schedule to this Act instead of the rates specified in the Second Schedule to the Act of 1916.

(4) Subject to the provisions of this Act any enactment relative to the pay of county inspectors, district inspectors or constables shall apply to pay at the rates authorised by this Act in like manner as it applies to pay at the rates actually in force at the passing of this Act.

(5) The schedule to the Constabulary (Ireland) Amendment Act, 1882 (so far as unrepealed), section one of the Act of 1916 and the First and Second Schedules to that Act are hereby repealed.

2.—(1) Where a man to whom this section applies, that is to say :—

Extension of
power to grant
pensions to
widows of
constables.

- (a) a constable who was serving in either of the said police forces on the first day of September nineteen hundred and eighteen ;
- (b) a constable of either of the said police forces who, having been called out as a reservist, or having entered or re-entered, enlisted or re-enlisted in any of His Majesty's naval, military, or air forces for the purposes of the present war, was on the said first day of September serving in any such force ;
- (c) a constable who, having joined either of the said police forces after the said first day of September, has completed five years' service,

dies, or has, on or after the said first day of September, died whilst serving in the police force or in any of His Majesty's naval, military, or air forces for the purposes of the present war, or whilst in receipt of a pension from the police authority, or in consequence of any disease or injury on account of which he retired from the police force, the police authority shall grant to his widow (being a woman whom he married before he retired from the police force and in accordance with the regulations of the force) a pension not exceeding twenty-six pounds a year, or if the constable's annual pay in the police force was more than two hundred and sixty pounds, not exceeding one tenth of the amount of such pay yearly :

Provided that if the widow is in receipt of a pension payable out of naval, military, or air force funds in pursuance of any Royal Warrant or Order in Council, then—

- (i) if the pension payable out of such funds amounts to or exceeds the amount prescribed by this section, no pension shall be payable under this section ;

- (ii) if the pension payable out of such funds is less than the amount prescribed by this section, the pension payable under this section shall be equal to the difference.

(2) Where a pension is granted under this Act to the widow of a constable to whom a gratuity has been granted on retirement from the police force, the pension shall be payable as from such date after the death of the constable as the police authority may determine.

Further provisions as to pensions to widows of constables. 46 & 47 Vict. c. 14.

3.—(1) Paragraph (9) of the Second Schedule to the Constabulary and Police (Ireland) Act, 1883, in its application to a pension payable under section four of that Act to the widow of a constable who has died on or after the first day of September nineteen hundred and eighteen, or dies after the passing of this Act, shall have effect as if “twenty-six pounds” were substituted for “ten pounds.”

(2) Where the widow is one to whom a pension or gratuity may be granted under section four of the Constabulary and Police (Ireland) Act, 1883, she shall not be entitled to a pension or gratuity under that section unless she accepts the same in lieu of a pension under this Act.

(3) A pension payable to a widow of a constable under this Act or under section four of the Constabulary and Police (Ireland) Act, 1883, shall, if at any time she remarries, be suspended, but in the event of her again becoming a widow shall be restored on proof to the satisfaction of the police authority that her circumstances are such that the pension is necessary for her support, and that she is of good character and deserving of bounty from public funds, and accordingly in paragraph (12) of the schedule to the said Act the words “remains a widow, and” shall be repealed, and that paragraph as so amended shall apply to pensions payable under this Act.

Allowances to widows of county inspectors or district inspectors. 4 & 5 Geo. 5. c. 54.

4.—(1) In paragraph (2) of the Third Schedule to the Constabulary and Police (Ireland) Act, 1914 (in this Act referred to as “the Act of 1914”), fifty pounds shall be substituted for thirty pounds as the maximum allowance that may be granted to the widow of a county inspector or district inspector of the Royal Irish Constabulary under section two of that Act.

(2) Where a county inspector or district inspector of the Royal Irish Constabulary without his own default loses his life from the effect of an injury received in the execution of his duty, the allowance granted to his widow under section two of the Act of 1914 may be in excess of the maximum amount fixed for such allowance in the Third Schedule to that Act as amended by this Act, so that the excess be not in any case greater than one half of that maximum amount.

Alteration of enactments relating to pensions and

5.—(1) In calculating the amount of the weekly allowance that may be granted under section one of the Irish Police (Naval and Military Service) Act, 1915, in respect of a married member

of the Royal Irish Constabulary or Dublin Metropolitan Police who, being a reservist, has been called out, or, not being a reservist, has joined His Majesty's Naval or Military Forces for the purposes of the present war, the weekly amount which that member was receiving from police funds at the time of his being so called out or joining shall, as from the first day of September nineteen hundred and eighteen, be computed as if the rates of pay authorised by this Act had been in force at that time, and as if any war bonus granted to the police force had then been payable, and the amount of any such weekly allowance may be altered so as to give effect to this provision.

allowances
and gratuities.
5 & 6 Geo. 5.
c. 32.

(2) In the application of subsection (2) of section three of the Act of 1914 to any pension, allowance or gratuity granted after the first day of September nineteen hundred and eighteen, any reference to any schedule to the Act of 1914 shall be construed as a reference to the corresponding schedule to this Act, and any reference to the commencement of that Act shall be construed as a reference to the first day of September nineteen hundred and eighteen, but nothing in that subsection as so applied shall affect the operation of section two of the Police (Emergency Provisions) Act, 1915.

5 & 6 Geo. 5.
c. 41.

(3) Section four of the Constabulary (Ireland) Act, 1908, which authorises pensions to be granted in certain circumstances to constables of the Royal Irish Constabulary, shall, with the substitution of the Chief Commissioner of the Dublin Metropolitan Police for the Inspector-General, apply as respects constables of the last-mentioned force in like manner as it applies as respects constables of the Royal Irish Constabulary.

8 Edw. 7. c. 60.

6. The consent of the police authority, referred to in subsection (3) of section one of the Irish Police (Naval and Military Service) Act, 1915, may, in the case of any man who has entered, re-entered, enlisted, or re-enlisted in any of His Majesty's naval, military, or air forces, be given after the time when he so entered, re-entered, enlisted, or re-enlisted, and when given after that time shall, for the purposes of the enactments regulating pensions and gratuities, have the same effect as if leave had been given before that time.

Reckoning of
service in
naval, mili-
tary, and
air forces.

7.—(1) The rates of charge for district inspectors and head constables under section five of the Constabulary (Ireland) Act, 1874, shall be fixed and determined on an average of the entire force of district inspectors and head constables in the like manner and according to the like principles as the rates of charge for other ranks under that section as amended by any subsequent enactment, and so much of the said section as fixes the rates of charge for district inspectors and head constables shall cease to have effect.

Amendment
of 37 & 38
Vict. c. 80. s. 5.

(2) In fixing and determining the rates of charge for any rank under the said section as so amended, regard shall be had to all items of expenditure in connection with that rank.

Interpretation. 8. In this Act unless the context otherwise requires—

The expression “police authority” means in the case of the Royal Irish Constabulary the Inspector-General, and in the case of the Dublin Metropolitan Police the Chief Commissioner; and

The expression “constable” includes any head constable major, head constable, sergeant, acting sergeant and constable of the Royal Irish Constabulary, and any member of the Dublin Metropolitan Police not being of higher rank than chief superintendent.

Short title and commencement. 9. This Act may be cited as the Constabulary and Police (Ireland) Act, 1918, and shall come into operation on the expiration of one week from the day on which it passes, but the rates of pay authorised by this Act shall be deemed to have been in force as from the first day of September nineteen hundred and eighteen in the case of members of either of the said police forces who are serving therein on the commencement of this Act, or were serving therein at any time after the said first day of September and before the commencement of this Act.

SCHEDULES.

FIRST SCHEDULE.

Section 1 (1). RATES OF PAY OF COUNTY INSPECTORS, DISTRICT INSPECTORS, AND CONSTABLES OF THE ROYAL IRISH CONSTABULARY.

PART I.

COUNTY INSPECTORS.

£400 a year on appointment increasing by £20 a year to £500. In the case of any county inspector appointed to that rank before the 1st day of September 1918, his yearly salary as from that date shall be calculated as if this schedule had been in operation at the time of his appointment.

DISTRICT INSPECTORS.

Class.	Length of Service in Class.	Yearly Pay.
1st class	6 years and upwards	£ 340
	3 to 6 years	315
	Under 3 years	290
2nd class	5 years and upwards	240
	Under 5 years	215
3rd class		190

PART II.

Section 1 (2).

CONSTABLES.

Rank.	Length of Service in Rank.	Weekly Pay.
		s.
Head Constable, Major -	- - - - -	61
Head Constable -	4 years and upwards -	60
	Under 4 years -	56
Sergeant -	4 years and upwards -	51
	Under 4 years -	49
Acting Sergeant -	- - - - -	47
Constable -	20 years and upwards -	45
	15 to 20 years -	43
	11 to 15 years -	42
	7 to 11 years -	41
	5 to 7 years -	39
	2 to 5 years -	38
	6 months to 2 years -	36
	Under 6 months -	31

SECOND SCHEDULE.

RATES OF PAY OF CONSTABLES OF THE DUBLIN METROPOLITAN POLICE. Section 1 (3).

Rank.	Yearly Pay.
Chief Superintendent -	£335 on appointment, increasing by £20 a year to £455 and then by one yearly increment of £5 to £460.
Superintendent -	£285 on appointment, increasing by £14 a year to £355.
Inspector -	£160 on appointment, increasing by £8 a year to £200.

Rank.	Length of Service in Rank.	Weekly Pay.
		s.
Station Sergeant -	- - - - -	58
Sergeant -	6 years and upwards -	55
	3 to 6 years -	54
	Under 3 years -	52
Constable -	20 years and upwards -	48
	15 to 50 years -	47
	8 to 15 years -	46
	3 to 8 years -	44
	1 to 3 years -	41
	Under 1 year -	39
Supernumerary Constable -	- - - - -	32

SPECIAL PROVISIONS.

1. The foregoing rates shall extend to inspectors, sergeants of less than six years' service in rank, and constables in the Detective Division. As respects other members of that division the following special rates shall apply :—

Rank.	Pay.
Superintendent - -	£335 a year on appointment, increasing by £20 a year to £435.
Chief Inspector - -	£202 a year on appointment, increasing by £8 a year to £242.
Sergeants of six years' service and upwards in rank - - -	58s. a week.
Detective Officer - -	48s. a week.

2. In the case of a chief superintendent, superintendent, chief inspector or inspector appointed to his rank before the 1st day of September 1918, his yearly pay in that rank as from that date shall be calculated as if this schedule had been in operation at the time of his appointment.

3. Where a superintendent is appointed to the rank of chief superintendent, his yearly pay on appointment to that rank shall not be less than his yearly pay immediately before his appointment.

CHAPTER 54.

An Act to amend the Tithe Acts, 1836 to 1891.

[21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Method of
computation
of tithe rent-
charge.

45 & 46 Vict.
c. 37.

1.—(1) The sum which on or before the first day of January, nineteen hundred and twenty-six, becomes payable under the Tithe Acts, 1836 to 1891, in respect of any tithe rentcharge, shall be the sum payable in respect of that rentcharge as ascertained by the septennial average prices published under the Corn Returns Act, 1882, in the month of January, nineteen hundred and eighteen.

(2) The Board of Agriculture and Fisheries shall, after the twenty-fifth day of December in the year nineteen hundred and twenty-five, and in each succeeding year, compute in the same manner as the septennial average is directed to be computed under the Corn Returns Act, 1882, and shall publish in the London Gazette in the month of January following the average price of each sort of British corn for the preceding fifteen years, and the sum payable under the Tithe Acts, 1836 to 1891, in respect